

STATE OF NEW YORK

1372--A

2025-2026 Regular Sessions

IN ASSEMBLY

January 9, 2025

Introduced by M. of A. DINOWITZ, BURDICK, HEVESI, TAPIA, LEVENBERG, SIMON -- read once and referred to the Committee on Health -- committee discharged, bill amended, ordered reprinted as amended and recommended to said committee

AN ACT to amend the public health law, in relation to enacting the "public university emergency contraception education act"

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Legislative findings and intent. The legislature finds
2 that access to emergency contraception is a basic measure that can
3 prevent college students from having an unwanted pregnancy. The federal
4 Food and Drug Administration has approved the use of emergency contra-
5 ception as safe and effective in the prevention of pregnancy. Emergency
6 contraception has been found to have no effect on an established preg-
7 nancy. Medical research strongly indicates that the sooner emergency
8 contraception is administered, the better the chance of preventing an
9 unwanted pregnancy. Therefore, the legislature deems it essential that
10 each college and university of the state university of New York and the
11 city university of New York provide information on emergency contracep-
12 tion to its students and makes it available to any student who seeks it
13 whenever practicable and in accordance with applicable law and profes-
14 sional standards of practice.

15 § 2. Short title. This act shall be known and may be cited as the
16 "public university emergency contraception education act".

17 § 3. Subdivision 1 of section 207 of the public health law is amended
18 by adding a new paragraph (t) to read as follows:

19 (t) A statewide emergency contraception college education and aware-
20 ness program. For the purpose of this paragraph, "emergency contracep-
21 tion" shall mean one or more prescription drugs, used separately or in
22 combination, in a dosage and manner for preventing pregnancy when used
23 after intercourse, found safe and effective for that use by the United

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 States Food and Drug Administration, and dispensed for that purpose in
2 accordance with applicable law and professional standards of practice.

3 The department shall develop, produce and distribute to every college
4 and university of the state university of New York and the city univer-
5 sity of New York informational materials and posters relating to the
6 safety and efficacy of emergency contraception, to be conspicuously
7 displayed at appropriate locations around each campus and distributed to
8 students in a manner to be determined by each college and university.
9 The materials and posters shall explain the nature of emergency contra-
10 ception, including that it is deemed safe and effective in preventing
11 pregnancy by the federal Food and Drug Administration, and cannot and
12 does not cause abortions.

13 In implementing the provisions of this paragraph the department shall
14 consult with representatives of reproductive health care providers,
15 students and appropriate university officials.

16 § 4. This act shall take effect on the one hundred twentieth day after
17 it shall have become a law. Effective immediately, the addition, amend-
18 ment and/or repeal of any rule or regulation necessary for the implemen-
19 tation of this act on its effective date are authorized to be made and
20 completed on or before such effective date.